

Court No. - 21

Case :- WRIT - C No. - 11527 of 2017

Petitioner :- Ram Raji

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Dinesh Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,J.

Hon'ble Ashok Kumar,J.

Ram Raji is before this Court with the grievance that respondents are not at all energizing the electricity supply to the petitioner's tubewell and the same has unnecessarily been kept on hold on account of the obstructions being created by private incumbents.

Petitioner has contended that as far as she is concerned, she has fulfilled all the prerequisite terms and conditions that are required to be fulfilled for energizing the tubewell in question and in case there is any obligation on the part of the petitioner, then the petitioner be informed and whatever impediments are there, necessary action shall be taken for redressal of the same.

Petitioner in pith and substance submits that in respect of energizing electricity supply, the matter cannot be kept pending for such a long duration and specially in the direction that private incumbents are trying to cause impediments on the spot.

Petitioner's counsel has proceeded to place reliance on the judgement of the Apex Court in the case of ***Chandu Khamaru vs. Nayan Malik and others 2011 (12) SCC 314*** in the proposition that it is the statutory obligation of the licensee to see and ensure in energizing is taking place and in case impediments in question are being created on the spot, then to invoke the authority provided under Electricity Supply Code, 2005 as well as Electricity Act, 2003.

Sri R.S. Umrao, Advocate appearing for Electricity Distribution Division, on the other hand, contended that remedial measures that are to be taken, would be taken as is provided for under the Electricity Act, 2003 read with other statutory provisions conferred.

In the light of the facts of the case, we proceed to pass an order asking the Executive Engineer, Distribution Division-II, 57, George Town, Allahabad to see and ensure that the proceedings in question are finalized in accordance with law preferably within next three months from the date of production of certified copy of this order. We make it clear that in case petitioner fulfils all the prerequisite formalities that are required to be fulfilled for getting the supply of the electricity in question and coupled with this, in case private incumbents are trying to raise dispute, then the dispute in question be tried to be resolved as per the suggestions that have been given by the Apex Court in the case of ***Chandu Khamaru (supra)***

With this, Writ Petition is **disposed of**.

Order Date :- 10.3.2017

Shalini